

**SENATE SUBSTITUTE FOR  
HOUSE BILL NO. 4309**

A bill to amend 1978 PA 368, entitled  
"Public health code,"  
by amending sections 16337 and 18001 (MCL 333.16337 and 333.18001),  
section 16337 as amended by 2006 PA 161 and section 18001 as  
amended by 2018 PA 355, and by adding sections 16187d, 17011b,  
17061a, 17511b, and 18011b.

**THE PEOPLE OF THE STATE OF MICHIGAN ENACT:**

1           **Sec. 16187d. (1) The PA licensure compact is enacted into law**  
2           **and entered into by this state as a party state with all other**  
3           **jurisdictions that legally join in the compact, in the form**  
4           **substantially as follows:**

**PA Licensure Compact**

6           **Section 1. Purpose**



1        In order to strengthen access to Medical Services, and in  
2        recognition of the advances in the delivery of Medical Services,  
3        the Participating States of the PA Licensure Compact have allied in  
4        common purpose to develop a comprehensive process that complements  
5        the existing authority of State Licensing Boards to license and  
6        discipline PAs and seeks to enhance the portability of a License to  
7        practice as a PA while safeguarding the safety of patients. This  
8        Compact allows Medical Services to be provided by PAs, via the  
9        mutual recognition of the Licensee's Qualifying License by other  
10       Compact Participating States. This Compact also adopts the  
11       prevailing standard for PA licensure and affirms that the practice  
12       and delivery of Medical Services by the PA occurs where the patient  
13       is located at the time of the patient encounter, and therefore  
14       requires the PA to be under the jurisdiction of the State Licensing  
15       Board where the patient is located. State Licensing Boards that  
16       participate in this Compact retain the jurisdiction to impose  
17       Adverse Action against a Compact Privilege in that State issued to  
18       a PA through the procedures of this Compact. The PA Licensure  
19       Compact will alleviate burdens for military families by allowing  
20       active duty military personnel and their spouses to obtain a  
21       Compact Privilege based on having an unrestricted License in good  
22       standing from a Participating State.

23       Section 2. Definitions

24       In this Compact:

25       A. "Adverse Action" means any administrative, civil,  
26       equitable, or criminal action permitted by a State's laws which is  
27       imposed by a Licensing Board or other authority against a PA  
28       License or License application or Compact Privilege such as License  
29       denial, censure, revocation, suspension, probation, monitoring of



1 the Licensee, or restriction on the Licensee's practice.

2 B. "Compact Privilege" means the authorization granted by a  
3 Remote State to allow a Licensee from another Participating State  
4 to practice as a PA to provide Medical Services and other licensed  
5 activity to a patient located in the Remote State under the Remote  
6 State's laws and regulations.

7 C. "Conviction" means a finding by a court that an individual  
8 is guilty of a felony or misdemeanor offense through adjudication  
9 or entry of a plea of guilt or no contest to the charge by the  
10 offender.

11 D. "Criminal Background Check" means the submission of  
12 fingerprints or other biometric-based information for a License  
13 applicant for the purpose of obtaining that applicant's criminal  
14 history record information, as defined in 28 CFR 20.3(d), from the  
15 State's criminal history record repository as defined in 28 CFR  
16 20.3(f).

17 E. "Data System" means the repository of information about  
18 Licensees, including but not limited to License status and Adverse  
19 Actions, which is created and administered under the terms of this  
20 Compact.

21 F. "Executive Committee" means a group of directors and ex-  
22 officio individuals elected or appointed pursuant to Section 7.F.2.

23 G. "Impaired Practitioner" means a PA whose practice is  
24 adversely affected by health-related condition(s) that impact their  
25 ability to practice.

26 H. "Investigative Information" means information, records, or  
27 documents received or generated by a Licensing Board pursuant to an  
28 investigation.

29 I. "Jurisprudence Requirement" means the assessment of an



1 individual's knowledge of the laws and Rules governing the practice  
2 of a PA in a State.

3 J. "License" means current authorization by a State, other  
4 than authorization pursuant to a Compact Privilege, for a PA to  
5 provide Medical Services, which would be unlawful without current  
6 authorization.

7 K. "Licensee" means an individual who holds a License from a  
8 State to provide Medical Services as a PA.

9 L. "Licensing Board" means any State entity authorized to  
10 license and otherwise regulate PAs.

11 M. "Medical Services" means health care services provided for  
12 the diagnosis, prevention, treatment, cure or relief of a health  
13 condition, injury, or disease, as defined by a State's laws and  
14 regulations.

15 N. "Model Compact" means the model for the PA Licensure  
16 Compact on file with The Council of State Governments or other  
17 entity as designated by the Commission.

18 O. "Participating State" means a State that has enacted this  
19 Compact.

20 P. "PA" means an individual who is licensed as a physician  
21 assistant in a State. For purposes of this Compact, any other title  
22 or status adopted by a State to replace the term "physician  
23 assistant" shall be deemed synonymous with "physician assistant"  
24 and shall confer the same rights and responsibilities to the  
25 Licensee under the provisions of this Compact at the time of its  
26 enactment.

27 Q. "PA Licensure Compact Commission," "Compact Commission," or  
28 "Commission" means the national administrative body created  
29 pursuant to Section 7.A of this Compact.



1 R. "Qualifying License" means an unrestricted License issued  
2 by a Participating State to provide Medical Services as a PA.

3 S. "Remote State" means a Participating State where a Licensee  
4 who is not licensed as a PA is exercising or seeking to exercise  
5 the Compact Privilege.

6 T. "Rule" means a regulation promulgated by an entity that has  
7 the force and effect of law.

8 U. "Significant Investigative Information" means Investigative  
9 Information that a Licensing Board, after an inquiry or  
10 investigation that includes notification and an opportunity for the  
11 PA to respond if required by State law, has reason to believe is  
12 not groundless and, if proven true, would indicate more than a  
13 minor infraction.

14 V. "State" means any state, commonwealth, district, or  
15 territory of the United States.

16 Section 3. State Participation in this Compact

17 A. To participate in this Compact, a Participating State  
18 shall:

19 1. License PAs.

20 2. Participate in the Compact Commission's Data System.

21 3. Have a mechanism in place for receiving and investigating  
22 complaints against Licensees and License applicants.

23 4. Notify the Commission, in compliance with the terms of this  
24 Compact and Commission Rules, of any Adverse Action against a  
25 Licensee or License applicant and the existence of Significant  
26 Investigative Information regarding a Licensee or License  
27 applicant.

28 5. Fully implement a Criminal Background Check requirement,  
29 within a time frame established by Commission Rule, by its



1 Licensing Board receiving the results of a Criminal Background  
2 Check and reporting to the Commission whether the License applicant  
3 has been granted a License.

4 6. Comply with the Rules of the Compact Commission.

5 7. Utilize passage of a recognized national exam such as the  
6 NCCPA PANCE as a requirement for PA licensure.

7 8. Grant the Compact Privilege to a holder of a Qualifying  
8 License in a Participating State.

9 B. Nothing in this Compact prohibits a Participating State  
10 from charging a fee for granting the Compact Privilege.

11 Section 4. Compact Privilege

12 A. To exercise the Compact Privilege, a Licensee must:

13 1. Have graduated from a PA program accredited by the  
14 Accreditation Review Commission on Education for the Physician  
15 Assistant, Inc. or other programs authorized by Commission Rule.

16 2. Hold current NCCPA certification.

17 3. Have no felony or misdemeanor Conviction.

18 4. Have never had a controlled substance license, permit, or  
19 registration suspended or revoked by a State or by the United  
20 States Drug Enforcement Administration.

21 5. Have a unique identifier as determined by Commission Rule.

22 6. Hold a Qualifying License.

23 7. Have had no revocation of a License or limitation or  
24 restriction on any License currently held due to an adverse action.

25 8. If a Licensee has had a limitation or restriction on a  
26 License or Compact Privilege due to an Adverse Action, two years  
27 must have elapsed from the date on which the License or Compact  
28 Privilege is no longer limited or restricted due to the Adverse  
29 Action.



1           9. If a Compact Privilege has been revoked or is limited or  
2 restricted in a Participating State for conduct that would not be a  
3 basis for disciplinary action in a Participating State in which the  
4 Licensee is practicing or applying to practice under a Compact  
5 Privilege, that Participating State shall have the discretion not  
6 to consider such action as an Adverse Action requiring the denial  
7 or removal of a Compact Privilege in that State.

8           10. Notify the Compact Commission that the Licensee is seeking  
9 the Compact Privilege in a Remote State.

10           11. Meet any Jurisprudence Requirement of a Remote State in  
11 which the Licensee is seeking to practice under the Compact  
12 Privilege and pay any fees applicable to satisfying the  
13 Jurisprudence Requirement.

14           12. Report to the Commission any Adverse Action taken by a  
15 non-participating State within thirty (30) days after the action is  
16 taken.

17           B. The Compact Privilege is valid until the expiration or  
18 revocation of the Qualifying License unless terminated pursuant to  
19 an Adverse Action. The Licensee must also comply with all of the  
20 requirements of Subsection A above to maintain the Compact  
21 Privilege in a Remote State. If the Participating State takes  
22 Adverse Action against a Qualifying License, the Licensee shall  
23 lose the Compact Privilege in any Remote State in which the  
24 Licensee has a Compact Privilege until all of the following occur:

- 25           1. The License is no longer limited or restricted; and  
26           2. Two (2) years have elapsed from the date on which the  
27 License is no longer limited or restricted due to the Adverse  
28 Action.

29           C. Once a restricted or limited License satisfies the



1 requirements of Subsection B.1 and 2, the Licensee must meet the  
2 requirements of Subsection A to obtain a Compact Privilege in any  
3 Remote State.

4 D. For each Remote State in which a PA seeks authority to  
5 prescribe controlled substances, the PA shall satisfy all  
6 requirements imposed by such State in granting or renewing such  
7 authority.

8 Section 5. Designation of the State from Which Licensee is  
9 Applying for a Compact Privilege

10 A. Upon a Licensee's application for a Compact Privilege, the  
11 Licensee shall identify to the Commission the Participating State  
12 from which the Licensee is applying, in accordance with applicable  
13 Rules adopted by the Commission, and subject to the following  
14 requirements:

15 1. When applying for a Compact Privilege, the Licensee shall  
16 provide the Commission with the address of the Licensee's primary  
17 residence and thereafter shall immediately report to the Commission  
18 any change in the address of the Licensee's primary residence.

19 2. When applying for a Compact Privilege, the Licensee is  
20 required to consent to accept service of process by mail at the  
21 Licensee's primary residence on file with the Commission with  
22 respect to any action brought against the Licensee by the  
23 Commission or a Participating State, including a subpoena, with  
24 respect to any action brought or investigation conducted by the  
25 Commission or a Participating State.

26 Section 6. Adverse Actions

27 A. A Participating State in which a Licensee is licensed shall  
28 have exclusive power to impose Adverse Action against the  
29 Qualifying License issued by that Participating State.



1           B. In addition to the other powers conferred by State law, a  
2 Remote State shall have the authority, in accordance with existing  
3 State due process law, to do all of the following:

4           1. Take Adverse Action against a PA's Compact Privilege within  
5 that State to remove a Licensee's Compact Privilege or take other  
6 action necessary under applicable law to protect the health and  
7 safety of its citizens.

8           2. Issue subpoenas for both hearings and investigations that  
9 require the attendance and testimony of witnesses as well as the  
10 production of evidence. Subpoenas issued by a Licensing Board in a  
11 Participating State for the attendance and testimony of witnesses  
12 or the production of evidence from another Participating State  
13 shall be enforced in the latter State by any court of competent  
14 jurisdiction, according to the practice and procedure of that court  
15 applicable to subpoenas issued in proceedings pending before it.  
16 The issuing authority shall pay any witness fees, travel expenses,  
17 mileage and other fees required by the service statutes of the  
18 State in which the witnesses or evidence are located.

19           3. Notwithstanding paragraph 2, subpoenas may not be issued by  
20 a Participating State to gather evidence of conduct in another  
21 State that is lawful in that other State for the purpose of taking  
22 Adverse Action against a Licensee's Compact Privilege or  
23 application for a Compact Privilege in that Participating State.

24           4. Nothing in this Compact authorizes a Participating State to  
25 impose discipline against a PA's Compact Privilege or to deny an  
26 application for a Compact Privilege in that Participating State for  
27 the individual's otherwise lawful practice in another State.

28           C. For purposes of taking Adverse Action, the Participating  
29 State which issued the Qualifying License shall give the same



1 priority and effect to reported conduct received from any other  
2 Participating State as it would if the conduct had occurred within  
3 the Participating State which issued the Qualifying License. In so  
4 doing, that Participating State shall apply its own State laws to  
5 determine appropriate action.

6 D. A Participating State, if otherwise permitted by State law,  
7 may recover from the affected PA the costs of investigations and  
8 disposition of cases resulting from any Adverse Action taken  
9 against that PA.

10 E. A Participating State may take Adverse Action based on the  
11 factual findings of a Remote State, provided that the Participating  
12 State follows its own procedures for taking the Adverse Action.

13 F. Joint Investigations

14 1. In addition to the authority granted to a Participating  
15 State by its respective State PA laws and regulations or other  
16 applicable State law, any Participating State may participate with  
17 other Participating States in joint investigations of Licensees.

18 2. Participating States shall share any investigative,  
19 litigation, or compliance materials in furtherance of any joint or  
20 individual investigation initiated under this Compact.

21 G. If an Adverse Action is taken against a PA's Qualifying  
22 License, the PA's Compact Privilege in all Remote States shall be  
23 deactivated until two (2) years have elapsed after all restrictions  
24 have been removed from the State License. All disciplinary orders  
25 by the Participating State which issued the Qualifying License that  
26 impose Adverse Action against a PA's License shall include a  
27 Statement that the PA's Compact Privilege is deactivated in all  
28 Participating States during the pendency of the order.

29 H. If any Participating State takes Adverse Action, it



1 promptly shall notify the administrator of the Data System.

2 Section 7. Establishment of the PA Licensure Compact  
3 Commission

4 A. The Participating States hereby create and establish a  
5 joint government agency and national administrative body known as  
6 the PA Licensure Compact Commission. The Commission is an  
7 instrumentality of the Compact States acting jointly and not an  
8 instrumentality of any one State. The Commission shall come into  
9 existence on or after the effective date of the Compact as set  
10 forth in Section 11.A.

11 B. Membership, Voting, and Meetings

12 1. Each Participating State shall have and be limited to one  
13 (1) delegate selected by that Participating State's Licensing Board  
14 or, if the State has more than one Licensing Board, selected  
15 collectively by the Participating State's Licensing Boards.

16 2. The delegate shall be either:

17 a. A current PA, physician or public member of a Licensing  
18 Board or PA Council/Committee; or

19 b. An administrator of a Licensing Board.

20 3. Any delegate may be removed or suspended from office as  
21 provided by the laws of the State from which the delegate is  
22 appointed.

23 4. The Participating State Licensing Board shall fill any  
24 vacancy occurring in the Commission within sixty (60) days.

25 5. Each delegate shall be entitled to one (1) vote on all  
26 matters voted on by the Commission and shall otherwise have an  
27 opportunity to participate in the business and affairs of the  
28 Commission. A delegate shall vote in person or by such other means  
29 as provided in the bylaws. The bylaws may provide for delegates'



1 participation in meetings by telecommunications, video conference,  
2 or other means of communication.

3 6. The Commission shall meet at least once during each  
4 calendar year. Additional meetings shall be held as set forth in  
5 this Compact and the bylaws.

6 7. The Commission shall establish by Rule a term of office for  
7 delegates.

8 C. The Commission shall have the following powers and duties:

9 1. Establish a code of ethics for the Commission;

10 2. Establish the fiscal year of the Commission;

11 3. Establish fees;

12 4. Establish bylaws;

13 5. Maintain its financial records in accordance with the  
14 bylaws;

15 6. Meet and take such actions as are consistent with the  
16 provisions of this Compact and the bylaws;

17 7. Promulgate Rules to facilitate and coordinate  
18 implementation and administration of this Compact. The Rules shall  
19 have the force and effect of law and shall be binding in all  
20 Participating States;

21 8. Bring and prosecute legal proceedings or actions in the  
22 name of the Commission, provided that the standing of any State  
23 Licensing Board to sue or be sued under applicable law shall not be  
24 affected;

25 9. Purchase and maintain insurance and bonds;

26 10. Borrow, accept, or contract for services of personnel,  
27 including, but not limited to, employees of a Participating State;

28 11. Hire employees and engage contractors, elect or appoint  
29 officers, fix compensation, define duties, grant such individuals



1 appropriate authority to carry out the purposes of this Compact,  
2 and establish the Commission's personnel policies and programs  
3 relating to conflicts of interest, qualifications of personnel, and  
4 other related personnel matters;

5 12. Accept any and all appropriate donations and grants of  
6 money, equipment, supplies, materials and services, and receive,  
7 utilize and dispose of the same; provided that at all times the  
8 Commission shall avoid any appearance of impropriety or conflict of  
9 interest;

10 13. Lease, purchase, accept appropriate gifts or donations of,  
11 or otherwise own, hold, improve or use, any property, real,  
12 personal or mixed; provided that at all times the Commission shall  
13 avoid any appearance of impropriety;

14 14. Sell, convey, mortgage, pledge, lease, exchange, abandon,  
15 or otherwise dispose of any property real, personal, or mixed;

16 15. Establish a budget and make expenditures;

17 16. Borrow money;

18 17. Appoint committees, including standing committees composed  
19 of members, State regulators, State legislators or their  
20 representatives, and consumer representatives, and such other  
21 interested persons as may be designated in this Compact and the  
22 bylaws;

23 18. Provide and receive information from, and cooperate with,  
24 law enforcement agencies;

25 19. Elect a Chair, Vice Chair, Secretary and Treasurer and  
26 such other officers of the Commission as provided in the  
27 Commission's bylaws.

28 20. Reserve for itself, in addition to those reserved  
29 exclusively to the Commission under the Compact, powers that the



1 Executive Committee may not exercise;

2 21. Approve or disapprove a State's participation in the  
3 Compact based upon its determination as to whether the State's  
4 Compact legislation departs in a material manner from the Model  
5 Compact language;

6 22. Prepare and provide to the Participating States an annual  
7 report; and

8 23. Perform such other functions as may be necessary or  
9 appropriate to achieve the purposes of this Compact consistent with  
10 the State regulation of PA licensure and practice.

11 D. Meetings of the Commission

12 1. All meetings of the Commission that are not closed pursuant  
13 to this subsection shall be open to the public. Notice of public  
14 meetings shall be posted on the Commission's website at least  
15 thirty (30) days prior to the public meeting.

16 2. Notwithstanding subsection D.1 of this section, the  
17 Commission may convene a public meeting by providing at least  
18 twenty-four (24) hours prior notice on the Commission's website,  
19 and any other means as provided in the Commission's Rules, for any  
20 of the reasons it may dispense with notice of proposed rulemaking  
21 under Section 9.L.

22 3. The Commission may convene in a closed, non-public meeting  
23 or non-public part of a public meeting to receive legal advice or  
24 to discuss:

25 a. Non-compliance of a Participating State with its  
26 obligations under this Compact;

27 b. The employment, compensation, discipline or other matters,  
28 practices or procedures related to specific employees or other  
29 matters related to the Commission's internal personnel practices



1 and procedures;

2 c. Current, threatened, or reasonably anticipated litigation;

3 d. Negotiation of contracts for the purchase, lease, or sale  
4 of goods, services, or real estate;

5 e. Accusing any person of a crime or formally censuring any  
6 person;

7 f. Disclosure of trade secrets or commercial or financial  
8 information that is privileged or confidential;

9 g. Disclosure of information of a personal nature where  
10 disclosure would constitute a clearly unwarranted invasion of  
11 personal privacy;

12 h. Disclosure of investigative records compiled for law  
13 enforcement purposes;

14 i. Disclosure of information related to any investigative  
15 reports prepared by or on behalf of or for use of the Commission or  
16 other committee charged with responsibility of investigation or  
17 determination of compliance issues pursuant to this Compact;

18 j. Legal advice; or

19 k. Matters specifically exempted from disclosure by federal or  
20 Participating States' statutes.

21 4. If a meeting, or portion of a meeting, is closed pursuant  
22 to this provision, the chair of the meeting or the chair's designee  
23 shall certify that the meeting or portion of the meeting may be  
24 closed and shall reference each relevant exempting provision.

25 5. The Commission shall keep minutes that fully and clearly  
26 describe all matters discussed in a meeting and shall provide a  
27 full and accurate summary of actions taken, including a description  
28 of the views expressed. All documents considered in connection with  
29 an action shall be identified in such minutes. All minutes and



1 documents of a closed meeting shall remain under seal, subject to  
2 release by a majority vote of the Commission or order of a court of  
3 competent jurisdiction.

4 E. Financing of the Commission

5 1. The Commission shall pay, or provide for the payment of,  
6 the reasonable expenses of its establishment, organization, and  
7 ongoing activities.

8 2. The Commission may accept any and all appropriate revenue  
9 sources, donations, and grants of money, equipment, supplies,  
10 materials, and services.

11 3. The Commission may levy on and collect an annual assessment  
12 from each Participating State and may impose Compact Privilege fees  
13 on Licensees of Participating States to whom a Compact Privilege is  
14 granted to cover the cost of the operations and activities of the  
15 Commission and its staff, which must be in a total amount  
16 sufficient to cover its annual budget as approved by the Commission  
17 each year for which revenue is not provided by other sources. The  
18 aggregate annual assessment amount levied on Participating States  
19 shall be allocated based upon a formula to be determined by  
20 Commission Rule.

21 a. A Compact Privilege expires when the Licensee's Qualifying  
22 License in the Participating State from which the Licensee applied  
23 for the Compact Privilege expires.

24 b. If the Licensee terminates the Qualifying License through  
25 which the Licensee applied for the Compact Privilege before its  
26 scheduled expiration, and the Licensee has a Qualifying License in  
27 another Participating State, the Licensee shall inform the  
28 Commission that it is changing to that Participating State the  
29 Participating State through which it applies for a Compact



1 Privilege and pay to the Commission any Compact Privilege fee  
2 required by Commission Rule.

3 4. The Commission shall not incur obligations of any kind  
4 prior to securing the funds adequate to meet the same; nor shall  
5 the Commission pledge the credit of any of the Participating  
6 States, except by and with the authority of the Participating  
7 State.

8 5. The Commission shall keep accurate accounts of all receipts  
9 and disbursements. The receipts and disbursements of the Commission  
10 shall be subject to the financial review and accounting procedures  
11 established under its bylaws. All receipts and disbursements of  
12 funds handled by the Commission shall be subject to an annual  
13 financial review by a certified or licensed public accountant, and  
14 the report of the financial review shall be included in and become  
15 part of the annual report of the Commission.

16 F. The Executive Committee

17 1. The Executive Committee shall have the power to act on  
18 behalf of the Commission according to the terms of this Compact and  
19 Commission Rules.

20 2. The Executive Committee shall be composed of nine (9)  
21 members:

22 a. Seven voting members who are elected by the Commission from  
23 the current membership of the Commission;

24 b. One ex-officio, nonvoting member from a recognized national  
25 PA professional association; and

26 c. One ex-officio, nonvoting member from a recognized national  
27 PA certification organization.

28 3. The ex-officio members will be selected by their respective  
29 organizations.



1           4. The Commission may remove any member of the Executive  
2 Committee as provided in its bylaws.

3           5. The Executive Committee shall meet at least annually.

4           6. The Executive Committee shall have the following duties and  
5 responsibilities:

6           a. Recommend to the Commission changes to the Commission's  
7 Rules or bylaws, changes to this Compact legislation, fees to be  
8 paid by Compact Participating States such as annual dues, and any  
9 Commission Compact fee charged to Licensees for the Compact  
10 Privilege;

11          b. Ensure Compact administration services are appropriately  
12 provided, contractual or otherwise;

13          c. Prepare and recommend the budget;

14          d. Maintain financial records on behalf of the Commission;

15          e. Monitor Compact compliance of Participating States and  
16 provide compliance reports to the Commission;

17          f. Establish additional committees as necessary;

18          g. Exercise the powers and duties of the Commission during the  
19 interim between Commission meetings, except for issuing proposed  
20 rulemaking or adopting Commission Rules or bylaws, or exercising  
21 any other powers and duties exclusively reserved to the Commission  
22 by the Commission's Rules; and

23          h. Perform other duties as provided in the Commission's Rules  
24 or bylaws.

25          7. All meetings of the Executive Committee at which it votes  
26 or plans to vote on matters in exercising the powers and duties of  
27 the Commission shall be open to the public and public notice of  
28 such meetings shall be given as public meetings of the Commission  
29 are given.



1           8. The Executive Committee may convene in a closed, non-public  
2 meeting for the same reasons that the Commission may convene in a  
3 non-public meeting as set forth in Section 7.D.3 and shall announce  
4 the closed meeting as the Commission is required to under Section  
5 7.D.4 and keep minutes of the closed meeting as the Commission is  
6 required to under Section 7.D.5.

7           G. Qualified Immunity, Defense, and Indemnification

8           1. The members, officers, executive director, employees and  
9 representatives of the Commission shall be immune from suit and  
10 liability, both personally and in their official capacity, for any  
11 claim for damage to or loss of property or personal injury or other  
12 civil liability caused by or arising out of any actual or alleged  
13 act, error, or omission that occurred, or that the person against  
14 whom the claim is made had a reasonable basis for believing  
15 occurred within the scope of Commission employment, duties or  
16 responsibilities; provided that nothing in this paragraph shall be  
17 construed to protect any such person from suit or liability for any  
18 damage, loss, injury, or liability caused by the intentional or  
19 willful or wanton misconduct of that person. The procurement of  
20 insurance of any type by the Commission shall not in any way  
21 compromise or limit the immunity granted hereunder.

22           2. The Commission shall defend any member, officer, executive  
23 director, employee, and representative of the Commission in any  
24 civil action seeking to impose liability arising out of any actual  
25 or alleged act, error, or omission that occurred within the scope  
26 of Commission employment, duties, or responsibilities, or as  
27 determined by the commission that the person against whom the claim  
28 is made had a reasonable basis for believing occurred within the  
29 scope of Commission employment, duties, or responsibilities;



1 provided that nothing herein shall be construed to prohibit that  
2 person from retaining their own counsel at their own expense; and  
3 provided further, that the actual or alleged act, error, or  
4 omission did not result from that person's intentional or willful  
5 or wanton misconduct.

6 3. The Commission shall indemnify and hold harmless any  
7 member, officer, executive director, employee, and representative  
8 of the Commission for the amount of any settlement or judgment  
9 obtained against that person arising out of any actual or alleged  
10 act, error, or omission that occurred within the scope of  
11 Commission employment, duties, or responsibilities, or that such  
12 person had a reasonable basis for believing occurred within the  
13 scope of Commission employment, duties, or responsibilities,  
14 provided that the actual or alleged act, error, or omission did not  
15 result from the intentional or willful or wanton misconduct of that  
16 person.

17 4. Venue is proper and judicial proceedings by or against the  
18 Commission shall be brought solely and exclusively in a court of  
19 competent jurisdiction where the principal office of the Commission  
20 is located. The Commission may waive venue and jurisdictional  
21 defenses in any proceedings as authorized by Commission Rules.

22 5. Nothing herein shall be construed as a limitation on the  
23 liability of any Licensee for professional malpractice or  
24 misconduct, which shall be governed solely by any other applicable  
25 State laws.

26 6. Nothing herein shall be construed to designate the venue or  
27 jurisdiction to bring actions for alleged acts of malpractice,  
28 professional misconduct, negligence, or other such civil action  
29 pertaining to the practice of a PA. All such matters shall be



1 determined exclusively by State law other than this Compact.

2 7. Nothing in this Compact shall be interpreted to waive or  
3 otherwise abrogate a Participating State's state action immunity or  
4 state action affirmative defense with respect to antitrust claims  
5 under the Sherman Act, Clayton Act, or any other State or federal  
6 antitrust or anticompetitive law or regulation.

7 8. Nothing in this Compact shall be construed to be a waiver  
8 of sovereign immunity by the Participating States or by the  
9 Commission.

10 Section 8. Data System

11 A. The Commission shall provide for the development,  
12 maintenance, operation, and utilization of a coordinated data and  
13 reporting system containing licensure, Adverse Action, and the  
14 reporting of the existence of Significant Investigative Information  
15 on all licensed PAs and applicants denied a License in  
16 Participating States.

17 B. Notwithstanding any other State law to the contrary, a  
18 Participating State shall submit a uniform data set to the Data  
19 System on all PAs to whom this Compact is applicable (utilizing a  
20 unique identifier) as required by the Rules of the Commission,  
21 including:

- 22 1. Identifying information;
- 23 2. Licensure data;
- 24 3. Adverse Actions against a License or Compact Privilege;
- 25 4. Any denial of application for licensure, and the reason(s)  
26 for such denial (excluding the reporting of any Criminal history  
27 record information where prohibited by law);
- 28 5. The existence of Significant Investigative Information; and
- 29 6. Other information that may facilitate the administration of



1 this Compact, as determined by the Rules of the Commission.

2 C. Significant Investigative Information pertaining to a  
3 Licensee in any Participating State shall only be available to  
4 other Participating States.

5 D. The Commission shall promptly notify all Participating  
6 States of any Adverse Action taken against a Licensee or an  
7 individual applying for a License that has been reported to it.  
8 This Adverse Action information shall be available to any other  
9 Participating State.

10 E. Participating States contributing information to the Data  
11 System may, in accordance with State or federal law, designate  
12 information that may not be shared with the public without the  
13 express permission of the contributing State. Notwithstanding any  
14 such designation, such information shall be reported to the  
15 Commission through the Data System.

16 F. Any information submitted to the Data System that is  
17 subsequently expunged pursuant to federal law or the laws of the  
18 Participating State contributing the information shall be removed  
19 from the Data System upon reporting of such by the Participating  
20 State to the Commission.

21 G. The records and information provided to a Participating  
22 State pursuant to this Compact or through the Data System, when  
23 certified by the Commission or an agent thereof, shall constitute  
24 the authenticated business records of the Commission, and shall be  
25 entitled to any associated hearsay exception in any relevant  
26 judicial, quasi-judicial or administrative proceedings in a  
27 Participating State.

28 Section 9. Rulemaking

29 A. The Commission shall exercise its Rulemaking powers



1 pursuant to the criteria set forth in this Section and the Rules  
2 adopted thereunder. Commission Rules shall become binding as of the  
3 date specified by the Commission for each Rule.

4 B. The Commission shall promulgate reasonable Rules in order  
5 to effectively and efficiently implement and administer this  
6 Compact and achieve its purposes. A Commission Rule shall be  
7 invalid and have not force or effect only if a court of competent  
8 jurisdiction holds that the Rule is invalid because the Commission  
9 exercised its rulemaking authority in a manner that is beyond the  
10 scope of the purposes of this Compact, or the powers granted  
11 hereunder, or based upon another applicable standard of review.

12 C. The Rules of the Commission shall have the force of law in  
13 each Participating State, provided however that where the Rules of  
14 the Commission conflict with the laws of the Participating State  
15 that establish the medical services a PA may perform in the  
16 Participating State, as held by a court of competent jurisdiction,  
17 the Rules of the Commission shall be ineffective in that State to  
18 the extent of the conflict.

19 D. If a majority of the legislatures of the Participating  
20 States rejects a Commission Rule, by enactment of a statute or  
21 resolution in the same manner used to adopt this Compact within  
22 four (4) years of the date of adoption of the Rule, then such Rule  
23 shall have no further force and effect in any Participating State  
24 or to any State applying to participate in the Compact.

25 E. Commission Rules shall be adopted at a regular or special  
26 meeting of the Commission.

27 F. Prior to promulgation and adoption of a final Rule or Rules  
28 by the Commission, and at least thirty (30) days in advance of the  
29 meeting at which the Rule will be considered and voted upon, the



Commission shall file a Notice of Proposed Rulemaking:

1. On the website of the Commission or other publicly accessible platform; and

2. To persons who have requested notice of the Commission's notices of proposed rulemaking, and

3. In such other way(s) as the Commission may by Rule specify.

G. The Notice of Proposed Rulemaking shall include:

1. The time, date, and location of the public hearing on the proposed Rule and the proposed time, date and location of the meeting in which the proposed Rule will be considered and voted upon;

2. The text of the proposed Rule and the reason for the proposed Rule;

3. A request for comments on the proposed Rule from any interested person and the date by which written comments must be received; and

4. The manner in which interested persons may submit notice to the Commission of their intention to attend the public hearing or provide any written comments.

H. Prior to adoption of a proposed Rule, the Commission shall allow persons to submit written data, facts, opinions, and arguments, which shall be made available to the public.

I. If the hearing is to be held via electronic means, the Commission shall publish the mechanism for access to the electronic hearing.

1. All persons wishing to be heard at the hearing shall as directed in the Notice of Proposed Rulemaking, not less than five (5) business days before the scheduled date of the hearing, notify the Commission of their desire to appear and testify at the



1 hearing.

2 2. Hearings shall be conducted in a manner providing each  
3 person who wishes to comment a fair and reasonable opportunity to  
4 comment orally or in writing.

5 3. All hearings shall be recorded. A copy of the recording and  
6 the written comments, data, facts, opinions, and arguments received  
7 in response to the proposed rulemaking shall be made available to a  
8 person upon request.

9 4. Nothing in this section shall be construed as requiring a  
10 separate hearing on each proposed Rule. Proposed Rules may be  
11 grouped for the convenience of the Commission at hearings required  
12 by this section.

13 J. Following the public hearing the Commission shall consider  
14 all written and oral comments timely received.

15 K. The Commission shall, by majority vote of all delegates,  
16 take final action on the proposed Rule and shall determine the  
17 effective date of the Rule, if adopted, based on the Rulemaking  
18 record and the full text of the Rule.

19 1. If adopted, the Rule shall be posted on the Commission's  
20 website.

21 2. The Commission may adopt changes to the proposed Rule  
22 provided the changes do not enlarge the original purpose of the  
23 proposed Rule.

24 3. The Commission shall provide on its website an explanation  
25 of the reasons for substantive changes made to the proposed Rule as  
26 well as reasons for substantive changes not made that were  
27 recommended by commenters.

28 4. The Commission shall determine a reasonable effective date  
29 for the Rule. Except for an emergency as provided in subsection L,



1 the effective date of the Rule shall be no sooner than thirty (30)  
2 days after the Commission issued the notice that it adopted the  
3 Rule.

4 L. Upon determination that an emergency exists, the Commission  
5 may consider and adopt an emergency Rule with twenty-four (24)  
6 hours prior notice, without the opportunity for comment, or  
7 hearing, provided that the usual rulemaking procedures provided in  
8 this Compact and in this section shall be retroactively applied to  
9 the Rule as soon as reasonably possible, in no event later than  
10 ninety (90) days after the effective date of the Rule. For the  
11 purposes of this provision, an emergency Rule is one that must be  
12 adopted immediately by the Commission in order to:

- 13 1. Meet an imminent threat to public health, safety, or  
14 welfare;
- 15 2. Prevent a loss of Commission or Participating State funds;
- 16 3. Meet a deadline for the promulgation of a Commission Rule  
17 that is established by federal law or Rule; or
- 18 4. Protect public health and safety.

19 M. The Commission or an authorized committee of the Commission  
20 may direct revisions to a previously adopted Commission Rule for  
21 purposes of correcting typographical errors, errors in format,  
22 errors in consistency, or grammatical errors. Public notice of any  
23 revisions shall be posted on the website of the Commission. The  
24 revision shall be subject to challenge by any person for a period  
25 of thirty (30) days after posting. The revision may be challenged  
26 only on grounds that the revision results in a material change to a  
27 Rule. A challenge shall be made as set forth in the notice of  
28 revisions and delivered to the Commission prior to the end of the  
29 notice period. If no challenge is made, the revision will take



1 effect without further action. If the revision is challenged, the  
2 revision may not take effect without the approval of the  
3 Commission.

4 N. No Participating State's rulemaking requirements shall  
5 apply under this Compact.

6 Section 10. Oversight, Dispute Resolution, and Enforcement

7 A. Oversight

8 1. The executive and judicial branches of State government in  
9 each Participating State shall enforce this Compact and take all  
10 actions necessary and appropriate to implement the Compact.

11 2. Venue is proper and judicial proceedings by or against the  
12 Commission shall be brought solely and exclusively in a court of  
13 competent jurisdiction where the principal office of the Commission  
14 is located. The Commission may waive venue and jurisdictional  
15 defenses to the extent it adopts or consents to participate in  
16 alternative dispute resolution proceedings. Nothing herein shall  
17 affect or limit the selection or propriety of venue in any action  
18 against a licensee for professional malpractice, misconduct or any  
19 such similar matter.

20 3. The Commission shall be entitled to receive service of  
21 process in any proceeding regarding the enforcement or  
22 interpretation of the Compact or the Commission's Rules and shall  
23 have standing to intervene in such a proceeding for all purposes.  
24 Failure to provide the Commission with service of process shall  
25 render a judgment or order in such proceeding void as to the  
26 Commission, this Compact, or Commission Rules.

27 B. Default, Technical Assistance, and Termination

28 1. If the Commission determines that a Participating State has  
29 defaulted in the performance of its obligations or responsibilities



1 under this Compact or the Commission Rules, the Commission shall  
2 provide written notice to the defaulting State and other  
3 Participating States. The notice shall describe the default, the  
4 proposed means of curing the default and any other action that the  
5 Commission may take and shall offer remedial training and specific  
6 technical assistance regarding the default.

7 2. If a State in default fails to cure the default, the  
8 defaulting State may be terminated from this Compact upon an  
9 affirmative vote of a majority of the delegates of the  
10 Participating States, and all rights, privileges and benefits  
11 conferred by this Compact upon such State may be terminated on the  
12 effective date of termination. A cure of the default does not  
13 relieve the offending State of obligations or liabilities incurred  
14 during the period of default.

15 3. Termination of participation in this Compact shall be  
16 imposed only after all other means of securing compliance have been  
17 exhausted. Notice of intent to suspend or terminate shall be given  
18 by the Commission to the governor, the majority and minority  
19 leaders of the defaulting State's legislature, and to the Licensing  
20 Board(s) of each of the Participating States.

21 4. A State that has been terminated is responsible for all  
22 assessments, obligations, and liabilities incurred through the  
23 effective date of termination, including obligations that extend  
24 beyond the effective date of termination.

25 5. The Commission shall not bear any costs related to a State  
26 that is found to be in default or that has been terminated from  
27 this Compact, unless agreed upon in writing between the Commission  
28 and the defaulting State.

29 6. The defaulting State may appeal its termination from the



1 Compact by the Commission by petitioning the United States District  
2 Court for the District of Columbia or the federal district where  
3 the Commission has its principal offices. The prevailing member  
4 shall be awarded all costs of such litigation, including reasonable  
5 attorney's fees.

6 7. Upon the termination of a State's participation in the  
7 Compact, the State shall immediately provide notice to all  
8 Licensees within that State of such termination:

9 a. Licensees who have been granted a Compact Privilege in that  
10 State shall retain the Compact Privilege for one hundred eighty  
11 (180) days following the effective date of such termination.

12 b. Licensees who are licensed in that State who have been  
13 granted a Compact Privilege in a Participating State shall retain  
14 the Compact Privilege for one hundred eighty (180) days unless the  
15 Licensee also has a Qualifying License in a Participating State or  
16 obtains a Qualifying License in a Participating State before the  
17 one hundred eighty (180)-day period ends, in which case the Compact  
18 Privilege shall continue.

19 C. Dispute Resolution

20 1. Upon request by a Participating State, the Commission shall  
21 attempt to resolve disputes related to this Compact that arise  
22 among Participating States and between participating and non-  
23 Participating States.

24 2. The Commission shall promulgate a Rule providing for both  
25 mediation and binding dispute resolution for disputes as  
26 appropriate.

27 D. Enforcement

28 1. The Commission, in the reasonable exercise of its  
29 discretion, shall enforce the provisions of this Compact and Rules



1 of the Commission.

2 2. If compliance is not secured after all means to secure  
3 compliance have been exhausted, by majority vote, the Commission  
4 may initiate legal action in the United States District Court for  
5 the District of Columbia or the federal district where the  
6 Commission has its principal offices, against a Participating State  
7 in default to enforce compliance with the provisions of this  
8 Compact and the Commission's promulgated Rules and bylaws. The  
9 relief sought may include both injunctive relief and damages. In  
10 the event judicial enforcement is necessary, the prevailing party  
11 shall be awarded all costs of such litigation, including reasonable  
12 attorney's fees.

13 3. The remedies herein shall not be the exclusive remedies of  
14 the Commission. The Commission may pursue any other remedies  
15 available under federal or State law.

16 E. Legal Action Against the Commission

17 1. A Participating State may initiate legal action against the  
18 Commission in the United States District Court for the District of  
19 Columbia or the federal district where the Commission has its  
20 principal offices to enforce compliance with the provisions of the  
21 Compact and its Rules. The relief sought may include both  
22 injunctive relief and damages. In the event judicial enforcement is  
23 necessary, the prevailing party shall be awarded all costs of such  
24 litigation, including reasonable attorney's fees.

25 2. No person other than a Participating State shall enforce  
26 this Compact against the Commission.

27 Section 11. Date of Implementation of the PA Licensure Compact  
28 Commission

29 A. This Compact shall come into effect on the date on which



1 this Compact statute is enacted into law in the seventh  
2 Participating State.

3 1. On or after the effective date of the Compact, the  
4 Commission shall convene and review the enactment of each of the  
5 States that enacted the Compact prior to the Commission convening  
6 ("Charter Participating States") to determine if the statute  
7 enacted by each such Charter Participating State is materially  
8 different than the Model Compact.

9 a. A Charter Participating State whose enactment is found to  
10 be materially different from the Model Compact shall be entitled to  
11 the default process set forth in Section 10.B.

12 b. If any Participating State later withdraws from the Compact  
13 or its participation is terminated, the Commission shall remain in  
14 existence and the Compact shall remain in effect even if the number  
15 of Participating States should be less than seven. Participating  
16 States enacting the Compact subsequent to the Commission convening  
17 shall be subject to the process set forth in Section 7.C.21 to  
18 determine if their enactments are materially different from the  
19 Model Compact and whether they qualify for participation in the  
20 Compact.

21 2. Participating States enacting the Compact subsequent to the  
22 seven initial Charter Participating States shall be subject to the  
23 process set forth in Section 7.C.21 to determine if their  
24 enactments are materially different from the Model Compact and  
25 whether they qualify for participation in the Compact.

26 3. All actions taken for the benefit of the Commission or in  
27 furtherance of the purposes of the administration of the Compact  
28 prior to the effective date of the Compact or the Commission coming  
29 into existence shall be considered to be actions of the Commission



1 unless specifically repudiated by the Commission.

2 B. Any State that joins this Compact shall be subject to the  
3 Commission's Rules and bylaws as they exist on the date on which  
4 this Compact becomes law in that State. Any Rule that has been  
5 previously adopted by the Commission shall have the full force and  
6 effect of law on the day this Compact becomes law in that State.

7 C. Any Participating State may withdraw from this Compact by  
8 enacting a statute repealing the same.

9 1. A Participating State's withdrawal shall not take effect  
10 until one hundred eighty (180) days after enactment of the  
11 repealing statute. During this one hundred eighty (180) day-period,  
12 all Compact Privileges that were in effect in the withdrawing State  
13 and were granted to Licensees licensed in the withdrawing State  
14 shall remain in effect. If any Licensee licensed in the withdrawing  
15 State is also licensed in another Participating State or obtains a  
16 license in another Participating State within the one hundred  
17 eighty (180) days, the Licensee's Compact Privileges in other  
18 Participating States shall not be affected by the passage of the  
19 one hundred eighty (180) days.

20 2. Withdrawal shall not affect the continuing requirement of  
21 the State Licensing Board(s) of the withdrawing State to comply  
22 with the investigative, and Adverse Action reporting requirements  
23 of this Compact prior to the effective date of withdrawal.

24 3. Upon the enactment of a statute withdrawing a State from  
25 this Compact, the State shall immediately provide notice of such  
26 withdrawal to all Licensees within that State. Such withdrawing  
27 State shall continue to recognize all licenses granted pursuant to  
28 this Compact for a minimum of one hundred eighty (180) days after  
29 the date of such notice of withdrawal.



1 D. Nothing contained in this Compact shall be construed to  
2 invalidate or prevent any PA licensure agreement or other  
3 cooperative arrangement between Participating States and between a  
4 Participating State and non-Participating State that does not  
5 conflict with the provisions of this Compact.

6 E. This Compact may be amended by the Participating States. No  
7 amendment to this Compact shall become effective and binding upon  
8 any Participating State until it is enacted materially in the same  
9 manner into the laws of all Participating States as determined by  
10 the Commission.

11 Section 12. Construction and Severability

12 A. This Compact and the Commission's rulemaking authority  
13 shall be liberally construed so as to effectuate the purposes, and  
14 the implementation and administration of the Compact. Provisions of  
15 the Compact expressly authorizing or requiring the promulgation of  
16 Rules shall not be construed to limit the Commission's rulemaking  
17 authority solely for those purposes.

18 B. The provisions of this Compact shall be severable and if  
19 any phrase, clause, sentence or provision of this Compact is held  
20 by a court of competent jurisdiction to be contrary to the  
21 constitution of any Participating State, a State seeking  
22 participation in the Compact, or of the United States, or the  
23 applicability thereof to any government, agency, person or  
24 circumstance is held to be unconstitutional by a court of competent  
25 jurisdiction, the validity of the remainder of this Compact and the  
26 applicability thereof to any other government, agency, person or  
27 circumstance shall not be affected thereby.

28 C. Notwithstanding subsection B or this section, the  
29 Commission may deny a State's participation in the Compact or, in



1 accordance with the requirements of Section 10.B, terminate a  
 2 Participating State's participation in the Compact, if it  
 3 determines that a constitutional requirement of a Participating  
 4 State is, or would be with respect to a State seeking to  
 5 participate in the Compact, a material departure from the Compact.  
 6 Otherwise, if this Compact shall be held to be contrary to the  
 7 constitution of any Participating State, the Compact shall remain  
 8 in full force and effect as to the remaining Participating States  
 9 and in full force and effect as to the Participating State affected  
 10 as to all severable matters.

### 11 Section 13. Binding Effect of Compact

12 A. Nothing herein prevents the enforcement of any other law of  
 13 a Participating State that is not inconsistent with this Compact.

14 B. Any laws in a Participating State in conflict with this  
 15 Compact are superseded to the extent of the conflict.

16 C. All agreements between the Commission and the Participating  
 17 States are binding in accordance with their terms.

18 (2) Subsection (1) may be referred to as the "PA licensure  
 19 compact".

20 Sec. 16337. (1) Fees for ~~a person~~ **an individual** licensed or  
 21 seeking licensure to engage in practice as a physician's assistant  
 22 under part 170, part 175, or part 180 are as follows:

|                                   |          |
|-----------------------------------|----------|
| 23 (a) Application processing fee | \$ 30.00 |
| 24 (b) License fee, per year      | 50.00    |
| 25 (c) Temporary license          | 35.00    |
| 26 (d) Limited license, per year  | 25.00    |

27 (2) In addition to the fees required under subsection (1) and  
 28 any fee charged by the compact commission for a compact privilege  
 29 under the PA licensure compact enacted in section 16187d, this



1 state's fee for an individual seeking to hold a compact privilege  
2 in this state under the PA licensure compact is \$50.00 per year.

3 Sec. 17011b. (1) An individual who holds a compact privilege  
4 under the PA licensure compact is authorized to engage in the  
5 practice as a physician's assistant under this article.

6 (2) For purposes of this article, including the obligations of  
7 an individual who is licensed to engage in the practice as a  
8 physician's assistant, an individual who holds a compact privilege  
9 under the PA licensure compact is considered a physician's  
10 assistant who is licensed under this part.

11 (3) This section does not apply until 12 months after the  
12 implementation of the data system under the PA licensure compact.

13 (4) As used in this section, "PA licensure compact" means the  
14 PA licensure compact enacted in section 16187d.

15 Sec. 17061a. The task force shall select the director to act  
16 as this state's delegate for purposes of the PA licensure compact  
17 enacted in section 16187d.

18 Sec. 17511b. (1) An individual who holds a compact privilege  
19 under the PA licensure compact is authorized to engage in the  
20 practice as a physician's assistant under this article.

21 (2) For purposes of this article, including the obligations of  
22 an individual who is licensed to engage in the practice as a  
23 physician's assistant, an individual who holds a compact privilege  
24 under the PA licensure compact is considered a physician's  
25 assistant who is licensed under this part.

26 (3) This section does not apply until 12 months after the  
27 implementation of the data system under the PA licensure compact.

28 (4) As used in this section, "PA licensure compact" means the  
29 PA licensure compact enacted in section 16187d.



1           Sec. 18001. (1) As used in this part:

2           (a) "Medical care services" means those services within the  
3       scope of practice of podiatric physicians licensed by the board,  
4       except those services that the board prohibits or otherwise  
5       restricts within a practice agreement or determines shall not be  
6       delegated by a podiatric physician without endangering the health  
7       and safety of patients as provided for in section 18048.

8           (b) "Participating podiatrist" means a podiatric physician or  
9       a podiatric physician designated by a group of podiatric physicians  
10      under section 18049 to represent that group.

11          (c) "Podiatric physician" **or "podiatrist"** means an individual  
12      who is licensed under this article to engage in the practice of  
13      podiatric medicine and podiatric surgery.

14          (d) "Practice agreement" means an agreement described in  
15      section 18047.

16          (e) "Practice as a physician's assistant" means the practice  
17      of podiatric medicine and podiatric surgery with a participating  
18      ~~podiatric physician~~ **podiatrist** under a practice agreement.

19          (f) Except as otherwise provided in subdivision (g), "practice  
20      of podiatric medicine and podiatric surgery" **or "practice of**  
21      **podiatry"** means any of the following:

22          (i) The evaluation, diagnosis, management, and prevention of  
23      conditions of the lower extremities, including local manifestations  
24      of systemic disease in the human foot and ankle, by attending to  
25      and advising patients and through the use of devices, diagnostic  
26      tests, drugs and biologicals, surgical procedures, or other means.  
27      The evaluation, diagnosis, management, and prevention of conditions  
28      of the lower extremities may include osseous and soft tissue  
29      procedures that address the pathology of the foot, ankle, and the



1 contiguous attachments below the tibial tuberosity.

2 (ii) The treatment of ulcerations below the tibial tuberosity  
3 and of human nail diseases, callosities, and verruca.

4 (g) "Practice of podiatric medicine and podiatric surgery"  
5 does not include amputations proximal to the tibiotalar joint,  
6 proximal osseous procedures that do not involve the tibiotalar  
7 joint, or the administration of intravenous sedation or general  
8 anesthesia.

9 (h) "Task force" means the joint task force created in section  
10 17025.

11 (2) In addition to the definitions in this part, article 1  
12 contains general definitions and principles of construction  
13 applicable to all articles in this code and part 161 contains  
14 definitions applicable to this part.

15 **Sec. 18011b. (1) An individual who holds a compact privilege**  
16 **under the PA licensure compact is authorized to engage in the**  
17 **practice as a physician's assistant under this article.**

18 (2) For purposes of this article, including the obligations of  
19 an individual who is licensed to engage in the practice as a  
20 physician's assistant, an individual who holds a compact privilege  
21 under the PA licensure compact is considered a physician's  
22 assistant who is licensed under this part.

23 (3) This section does not apply until 12 months after the  
24 implementation of the data system under the PA licensure compact.

25 (4) As used in this section, "PA licensure compact" means the  
26 PA licensure compact enacted in section 16187d.

27 Enacting section 1. This amendatory act takes effect 90 days  
28 after the date it is enacted into law.

